



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9952
(SECOND REVISION)

JAN 3 1991

1. Greif Bros. Corporation, Springfield, New Jersey, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of the hazardous materials described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the manufacture, marking and sale of a non-DOT specification steel drum of 14" diameter conforming to DOT Specification 37A, except that the top cover or lid is constructed of plastic and secured by a metal lever action closing ring, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Greif Bros. Corporation's application dated August 30, 1990, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon and supplemental information dated November 6, 1989.

3. HAZARDOUS MATERIALS (Descriptor and class). Those materials currently authorized to be packaged in DOT 37A steel drums.

4. PROPER SHIPPING NAME (49 CFR 172.101). As specified in 49 CFR 172.101; or the specific chemical name or generic commodity description, as appropriate.

5. REGULATION AFFECTED. 49 CFR Part 173, Subparts D, E, F and H; 178.131.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification steel drum of 14" diameter and 13-gallon capacity conforming to DOT Specification 37A, except that the top cover or lid is constructed of injection molded plastic with a minimum thickness of 0.090-inch (in corners and undercuts), secured by a metal lever action closing ring. Drums must be as shown on Greif Bros. Corporation Drawing 257 dated January 29, 1988 or Drawing 331 dated March 1, 1989, on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). Commodities must be compatible with the plastic lid and may not permeate the plastic to the extent that a hazardous condition could be caused during transportation or handling. Drums, closed as for shipment, must be capable of satisfactorily withstanding the performance tests prescribed in 49 CFR 178.131-11 and as cited in Greif Bros. Test Report No. 10-1206, dated January 28, 1988, and 10-1872, dated April 18, 1989, included in the applications.

JAN 3 1991

8. SPECIAL PROVISIONS.

a. Offerors for transportation of hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

b. Shippers using the packaging covered by this exemption must comply with the shipping paper, marking, labeling, and placarding requirements of 49 CFR Part 172; the special packaging requirements of 49 CFR 173.3a for certain poisonous materials; all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 100-180.

c. A copy of this exemption must be carried aboard each cargo vessel used to transport packages covered by this exemption.

d. The container body must be marked in accordance with 49 CFR 178.131-9, except that "DOT-E 9952" shall replace "DOT-37A" in the marking. Additionally, the cover or lid must be permanently marked "DOT-E 9952".

e. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

f. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated for a specific manufacturing facility.

e. Each container body and cover or lid manufactured in accordance with the requirements of this exemption must be permanently marked in a manner which identifies the manufacturer and the physical location (city and state) of the facility at which it is manufactured.

g. The revised marking requirements contained in paragraphs c. and e. above apply to covers or lids manufactured after November 2, 1989.

h. All requirements such as weight or capacity limitations and inside packagings contained in 49 CFR Part 173, Subparts D, E, F and H for DOT Specification 37A steel drums apply to the packaging authorized under this exemption.

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reporting to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. October 31, 1992.

Issued at Washington, D.C.



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JAN 3 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FHWA, FRA, USCG



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9952 (EXTENSION)
FIRST REVISION September 27, 1989

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9952 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to October 31, 1992. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105 and the public proceeding thereon. This extension constitutes a necessary part of this exemption and must be attached to it.



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

NOV 5 1990

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Greif Bros. Corporation
Springfield, NJ

August 30, 1990



U.S. Department
of Transportation

Research and
Special Programs
Administration

SEP 27 1989

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9952
(FIRST REVISION)

1. Greif Bros. Corporation, Springfield, New Jersey, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of the hazardous materials described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the manufacture, marking and sale of a non-DOT specification steel drum of 14" diameter conforming to DOT Specification 37A, except that the top cover or lid is constructed of plastic and secured by a metal lever action closing ring, and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on Greif Bros. Corporation's applications dated March 2, 1988 and March 3, 1989, and supplemental information dated May 24, 1989, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
3. HAZARDOUS MATERIALS (Descriptor and class). Those materials currently authorized to be packaged in DOT 37A steel drums.
4. PROPER SHIPPING NAME (49 CFR 172.101). As specified in 49 CFR 172.101; or the specific chemical name or generic commodity description, as appropriate.
5. REGULATION AFFECTED. 49 CFR Part 173, Subparts D, E, F and H; 178.131.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel.
7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification steel drum of 14" diameter and 13-gallon capacity conforming to DOT Specification 37A, except that the top cover or lid is constructed of injection molded polyethylene with a minimum thickness of 0.090-inch (in corners and undercuts), secured by a metal lever action closing ring. Drums must be as shown on Greif Bros. Corporation Drawing 257 dated January 29, 1988 or Drawing 331 dated March 1, 1989, on file with the Office of Hazardous Materials Transportation (OHMT). Commodities must be compatible with polyethylene lid and may not permeate the polyethylene to the extent that a hazardous condition could be caused during transportation or handling. Drums, closed as for shipment, must be capable of satisfactorily withstanding the performance tests prescribed in 49 CFR 178.131-11 and as cited in Greif Bros. Test Report No. 10-1206, dated January 28, 1988, and 10-1872, dated April 18, 1989, included in the applications.

8. SPECIAL PROVISIONS.

- a. Shippers may use the packaging(s) covered by this exemption pursuant to 49 CFR 173.22a.
- b. A copy of this exemption must be carried aboard each cargo vessel used to transport packages covered by this exemption.
- c. The container body must be marked in accordance with 49 CFR 178.131-9, except that "DOT-E 9952" shall replace "DOT-37A" in the marking. Additionally, the cover or lid must be permanently marked "DOT-E 9952".
- d. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.
- e. Each container body and cover or lid manufactured in accordance with the requirements of this exemption must be permanently marked in a manner which identifies the manufacturer and the physical location (city and state) of the facility at which it is manufactured.
- f. The revised marking requirements contained in paragraphs c. and e. above apply to covers or lids manufactured after November 2, 1989.
- g. All requirements such as weight or capacity limitations and inside packagings contained in 49 CFR Part 173, Subparts D, E, F and H for DOT Specification 37A steel drums apply to the packaging authorized under this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. October 31, 1990.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials Transportation

SEP 27 1989

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA, USCG